

		protect the interest of the party entitled to but denied discovery.'" (<i>Doppes v. Bentley Motors, Inc., supra</i>, 174 Cal.App.4th at p. 992, quoting <i>Laguna Autobody v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 487.) Therefore, the court will deny the request for evidentiary and terminating sanctions. <u>Standard for Monetary Discovery Sanctions</u> On the other hand, willfulness is not required for the imposition of monetary sanctions. (<i>Ellis v. Toshiba America Information Systems, Inc.</i> (2013) 218 Cal.App.4th 853, 878; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1286.) A trial court has "every right to impose a monetary sanction to compel obedience to its lawful orders, or to punish disobedience and disrespect of the court's processes." (<i>20th Century Ins. Co. v. Choong</i> (2000) 79 Cal.App.4th 1274, 1278.) Here, there is no indication that Plaintiff has responded to the discovery requests. The court therefore will grant Defendant NM Law's request for monetary sanctions. However, the amount of monetary sanctions requested is excessive and the court will reduce the amount accordingly. In light of the court's award of monetary sanctions to Defendant NM Law, the court finds it unnecessary to award monetary sanctions pursuant to Civil Procedure Code section 177.5 and will exercise its discretion to deny that request. Defendant NM Law shall give notice of this ruling.
11	Cliq, Inc. vs. Capital Managers, LLC 30-2021-01220754	<u>Motions for Attorney's Fees and Motions to Strike and/or Tax Costs</u> The court will hear from the parties regarding their efforts to agree upon the appointment of a referee to prepare a report and make recommendations on the parties' respective motions for attorney's fees and motions to strike and/or tax costs.

12	Lemus vs. BluKey 30-2023-01303205	<u>Motions to Set Aside</u> Defendant Isabella Nguyen’s Motion to Set Aside Default is DENIED. Defendant BluKey’s Motion to Set Aside Default is GRANTED. Defendants BluKey San Diego, Inc.’s and BluKey Real Estate, Inc.’s Motion to Set Aside Default Judgments [C.C.P. § 473(b)] are GRANTED. The Defaults entered against Defendants BluKey; BluKey San Diego, Inc.; and BluKey Real Estate, Inc. are SET ASIDE. The Default Judgments issued against Defendant BluKey; BluKey San Diego, Inc.; and BluKey Real Estate, Inc. are VACATED. Defendants BluKey; BluKey San Diego, Inc.; and BluKey Real Estate, Inc. are ORDERED to file their answer to the Complaint within 15 days of this ruling, and to serve their answer on all parties that have appeared in this matter within 60 days of this ruling. The court SETS a Case Management Conference for October 15, 2026 at 9:00 a.m. in Department N15. <u>Pending Motions</u> Defendants Isabella Nguyen; BluKey; BluKey San Diego, Inc.; and BluKey Real Estate, Inc. move to set aside the defaults entered against them and the default judgments issued against them. <u>Standard for Statutory Set Aside Entry of Default or Default Judgment</u> The Civil Procedure Code grants the court discretion to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).)